

Note on *R. v. Ipeelee*

R. v. Ipeelee is a case about two defendants, Mr. Ipeelee and Mr. Ladue. The Supreme Court of Canada decided their appeals together because those two appeals dealt with the same legal issue; their cases are not otherwise related.

As the Court notes, the “two appeals raise the issue of the principles governing the sentencing of Aboriginal offenders for breaches of long-term supervision orders (‘LTSOs’).” (*R. v. Ipeelee* at para. 1.) Before reading the case, it is helpful to have some background knowledge of LTSOs. (LTSOs are not themselves a focus of this class. The following discussion is exclusively intended to help you understand *Ipeelee*, which we read for its discussion of “*Gladue* sentencing.”)

Correctional Service Canada defines LTSOs as:

“[A]n order imposed by the court as a sentencing option to an offender designated as a Dangerous Offender pursuant to section 753 of the Criminal Code or as a Long-Term Offender pursuant to section 753.1 of the Criminal Code. The offender who has received such an order is supervised in accordance with the CCRA [*Corrections and Conditional Release Act*]. The long-term supervision order commences when the offender has finished serving all sentences for offences for which he/she had been convicted. The period of supervision to which the offender is subject at any time must not total more than 10 years.” (<http://www.csc-scc.gc.ca/politiques-et-lois/719-cd-eng.shtml#d3>)

Breaching the terms of one’s LTSO is an indictable offence under s. 753.3(1) of the *Criminal Code*, and is punishable by imprisonment for up to ten years.

Both Mr. Ipeelee and Mr. Ladue were designated as Long-Term Offenders (“LTOs”) and were subject to LTSOs. Public Safety Canada explains the LTO designation as follows:

“The LTO designation is given to individuals convicted of a ‘serious personal injury offence’ who, on the evidence, are likely to re-offend. Offenders who can be managed through a regular sentence, along with a specific period of federal supervision in the community, can be designated a LTO [...]” (<http://www.publicsafety.gc.ca/cnt/cntrng-crm/crrctns/protctn-gnst-hgh-rsk-ffndrs/lng-trm-ffndr-dsgntn-eng.aspx>)

The *Ipeelee* Court provides additional information about Dangerous Offenders, LTOs, and LTSOs at paras. 40 ff., but most of it has been edited out of these supplementary materials.



SUPREME COURT OF CANADA

CITATION: R. v. Ipeelee, 2012 SCC 13, [2012] 1 S.C.R. 433

DATE: 20120323

DOCKET: 33650, 34245

BETWEEN:

Manasie Ipeelee
Appellant
and
Her Majesty The Queen
Respondent
- and -

Director of Public Prosecutions and Aboriginal Legal Services of Toronto Inc.
Interveners

AND BETWEEN:

Her Majesty The Queen
Appellant
and
Frank Ralph Ladue
Respondent
- and -

British Columbia Civil Liberties Association and Canadian Civil Liberties Association
Interveners

CORAM: McLachlin C.J. and Binnie, LeBel, Deschamps, Fish, Abella and Rothstein JJ.

REASONS FOR JUDGMENT:
(paras. 1 to 98):

LeBel J. (McLachlin C.J. and Binnie, Deschamps, Fish and Abella JJ. concurring)

REASONS DISSENTING IN PART:
(paras. 99 to 157):

Rothstein J.

APPEAL from a judgment of the Ontario Court of Appeal [...] affirming a sentence imposed by Megginson J. [...]. Appeal allowed, Rothstein J. dissenting.

APPEAL from a judgment of the British Columbia Court of Appeal [...] varying a sentence imposed by Bagnall Prov. Ct. J. [...]. Appeal dismissed.

The judgment of McLachlin C.J. and Binnie, LeBel, Deschamps, Fish and Abella JJ. was delivered by

LEBEL J. —

I. Introduction

[1] These two appeals raise the issue of the principles governing the sentencing of Aboriginal offenders for breaches of long-term supervision orders (“LTSOs”). Both appeals concern Aboriginal offenders with long criminal records. They provide an opportunity to revisit and reaffirm the judgment of this Court in *R. v. Gladue*, [1999] 1 S.C.R. 688. I propose to allow the offender’s appeal in *Ipeelee* and to dismiss the Crown’s appeal in *Ladue*.

II. Manasie Ipeelee

A. *Background and Criminal History*

[2] Mr. Manasie Ipeelee is an Inuk man who was born and raised in Iqaluit, Nunavut. His life story is far removed from the experience of most Canadians. His mother was an alcoholic. She froze to death when Manasie Ipeelee was five years old. He was raised by his maternal grandmother and grandfather, both of whom are now

deceased. Mr. Ipeelee began consuming alcohol when he was 11 years old and quickly developed a serious alcohol addiction. He dropped out of school shortly thereafter. His involvement with the criminal justice system began in 1985, when he was only 12 years old.

[3] Mr. Ipeelee is presently 39 years old. He has spent a significant proportion of his life in custody or under some form of community supervision. His youth record contains approximately three dozen convictions. The majority of those offences were property-related [...]. Mr. Ipeelee's adult record contains another 24 convictions, many of which are for similar types of offences. He has also committed violent crimes. His record includes two convictions for assault causing bodily harm and one conviction each for aggravated assault, sexual assault, and sexual assault causing bodily harm. [...]

[4] In December 1992, Mr. Ipeelee pleaded guilty to assault causing bodily harm. He and a friend assaulted a man who was refusing them entry to his home. Mr. Ipeelee was intoxicated at the time. During the fight, he hit the victim over the head with an ashtray and with a chair. He was sentenced to 21 days' imprisonment and one year's probation.

[5] In December 1993, Mr. Ipeelee again pleaded guilty to assault causing bodily harm. The incident took place outside a bar in Iqaluit and both Mr. Ipeelee and the victim were intoxicated. Witnesses saw Mr. Ipeelee kicking the victim in the face at least 10 times, and the assault continued after the victim lost consciousness. The victim was hospitalized for his injuries. At the time of the offence, Mr. Ipeelee was on probation. He received a sentence of five months' imprisonment.

[6] In November 1994, Mr. Ipeelee pleaded guilty to aggravated assault. The incident involved another altercation outside the same bar in Iqaluit. Once more, both Mr. Ipeelee and the victim were intoxicated. During the fight, Mr. Ipeelee hit and kicked the victim. After the victim lost consciousness, Mr. Ipeelee continued to hit him and stomp on his face. The victim suffered a broken jaw and had to be sent to Montréal for treatment. Mr. Ipeelee was once again on probation at the time of the offence. He was sentenced to 14 months' imprisonment.

[7] Mr. Ipeelee received an early release from that sentence in the fall of 1995. Approximately three weeks later, while still technically serving his sentence, he committed a sexual assault. The female victim had been drinking in her apartment in

Iqaluit with Mr. Ipeelee and others, and was passed out from intoxication. Witnesses observed Mr. Ipeelee and another man carrying the victim into her room. Mr. Ipeelee was later seen having sex with the unconscious woman on her bed. Mr. Ipeelee was sentenced to two years' imprisonment. He remained in custody until his warrant expiry date in February 1999, as Corrections Canada officials deemed him to be a high risk to reoffend.

[8] After serving his sentence, Mr. Ipeelee moved to Yellowknife. He began drinking within one half-hour of his arrival and was arrested for public intoxication that evening, and again 24 hours later. In the six months leading up to his next conviction, he was arrested at least nine more times for public intoxication.

[9] On August 21, 1999, Mr. Ipeelee committed another sexual assault, this one causing bodily harm, which led to his designation as a long-term offender. Mr. Ipeelee, while intoxicated, entered an abandoned van that homeless persons frequented. Inside, a 50-year-old woman was sleeping. She awoke to find Mr. Ipeelee removing her pants. She struggled and Mr. Ipeelee began punching her in the face. When she called out for help, he told her to shut up or he would kill her. He then sexually assaulted her. The victim was finally able to escape when Mr. Ipeelee fell asleep. He was arrested and the victim was taken to the hospital to be treated for her injuries.

[10] At the sentencing hearing for this offence, Richard J. of the Northwest Territories Supreme Court noted that Mr. Ipeelee's criminal record "shows a consistent pattern of Mr. Ipeelee administering gratuitous violence against vulnerable, helpless people while he is in a state of intoxication" (*R. v. Ipeelee*, 2001 NWTSC 33, [2001] N.W.T.J. No. 30 (QL), at para. 34). The expert evidence produced at the sentencing hearing indicated that Mr. Ipeelee did not suffer from any major mental illness and had average to above average intelligence. However, he was diagnosed as having both an antisocial personality disorder and a severe alcohol abuse disorder. The expert evidence also indicated that Mr. Ipeelee presented a high-moderate to high risk for violent reoffence, and a high-moderate risk for sexual reoffence. After evaluating all of the evidence, Richard J. concluded that there was a substantial risk that Mr. Ipeelee would reoffend and designated him a long-term offender under s. 753.1(1) of the *Criminal Code*, R.S.C. 1985, c. C-46. Mr. Ipeelee was sentenced to six years' imprisonment for the sexual assault, to be followed by a 10-year LTSO.

B. *The Current Offence*

[11] Mr. Ipeelee was detained until his warrant expiry date for the 1999 sexual assault causing bodily harm. His LTSO came into effect on March 14, 2007, when he was released from Kingston Penitentiary to the Portsmouth Community Correctional Centre in Kingston. One of the conditions of Mr. Ipeelee's LTSO is that he abstain from using alcohol. [...]

[13] On August 20, 2008, the police found Mr. Ipeelee riding his bicycle erratically in downtown Kingston. He was obviously intoxicated and had two bottles of alcohol in his possession. He was charged with breaching a condition of his LTSO, contrary to s. 753.3(1) of the *Criminal Code*. Mr. Ipeelee pleaded guilty to that offence on November 14, 2008.

C. Judicial History

(1) Ontario Court of Justice, [2009] O.J. No. 6413 (QL)

[14] On February 24, 2009, Megginson J. of the Ontario Court of Justice sentenced Mr. Ipeelee to three years' imprisonment, less six months of pre-sentence custody at a 1:1 credit rate. He emphasized the serious nature of the offence, stating:

On its facts, this was a serious and not at all trivial breach of a very fundamental condition of the offender's [LTSO]. [...] On his history, Mr. Ipeelee becomes violent when he abuses alcohol, and he was assessed as posing a significant risk of re-offending sexually. Defence counsel argued that the facts of the present breach disclose no movement toward committing another sexual offence, but I think that is beside the point. [para. 10]

[15] Megginson J. held that, when sentencing an offender for breach of an LTSO, the paramount consideration is the protection of the public and rehabilitation plays only a small role. [...] He went on to conclude that, when protection of the public is the paramount concern, an offender's Aboriginal status is of "diminished importance" (para. 15).

(2) Ontario Court of Appeal, 2009 ONCA 892, 99 O.R. (3d) 419

[16] Mr. Ipeelee appealed his sentence on the grounds that it was demonstrably unfit, and that the sentencing judge did not give adequate consideration to his circumstances as an Aboriginal offender. The Court of Appeal dismissed the appeal. [...]

III. Frank Ralph Ladue

A. *Background and Criminal History*

[19] Mr. Frank Ralph Ladue, now 49 years old, is a member of the Ross River Dena Council Band, a small community of approximately 500 people located 400 kilometres northeast of Whitehorse in the Yukon Territory. Mr. Ladue's parents had severe alcohol abuse problems, so he was raised by his grandparents. His mother and father both died when Mr. Ladue was still very young, and records indicate that his mother may have been murdered. When Mr. Ladue was five years old, he was removed from his community and sent to residential school, where he alleges he suffered serious physical, sexual, emotional and spiritual abuse.

[20] When Mr. Ladue was nine years old, he returned to Ross River to resume living with his grandparents. The effects of his residential school experience were readily apparent. He could no longer speak his traditional language, having been forbidden to do so in residential school. Unable to communicate his painful experiences to his family, he began drinking and acting out. Before long, he was living with foster families and spending time in juvenile detention. Mr. Ladue continued to drink heavily throughout his life (with the exception of a six-year period of sobriety in the 1990s which coincided with a period free from criminal convictions). Mr. Ladue also began using heroin, cocaine and morphine while in a federal penitentiary.

[21] Mr. Ladue's life experiences may seem foreign to most Canadians, but they are all too common in Ross River. The community suffered a number of abuses in the 1940s when the United States Army was building a pipeline through the region. There were reports of community members being assaulted or raped by members of the army. The community was further traumatized through the residential school experience. The effects of that collective experience continue to be evident in the high rates of alcohol abuse and violence in the community.

[22] The first offence on Mr. Ladue's criminal record occurred in 1978 when he was 16 years old. His record lists over 40 convictions since that time, approximately 10 of which were as a young offender. Some of the offences are property-related [...]. His violent offences include robbery convictions in 1978 and 1980, and common assault convictions in 1979 and 1982. Mr. Ladue has also been convicted of a number of sexual assaults. These sexual assaults will be described in some detail, as they ultimately led to his designation as a long-term offender.

[23] In 1987, Mr. Ladue entered a woman's bedroom following a party. He sexually assaulted the victim while she was either sleeping or passed out from intoxication. In 1997, Mr. Ladue sexually assaulted another woman who was passed out from intoxication. When she awoke, the bottom half of her clothing was removed and Mr. Ladue was sexually assaulting her. Another incident took place in 1998, although it did not lead to a conviction for sexual assault. Mr. Ladue entered the home of a woman who was sleeping and placed a sleeping bag over her head and shoulders. He was interrupted by the woman's daughter and he fled the residence. Mr. Ladue's sentences for these convictions ranged from four months' imprisonment (for the 1998 offence) to 30 months' imprisonment.

[24] Mr. Ladue committed the offence giving rise to his LTSO on October 6, 2002. On that date, he entered a dwelling house without permission from the occupants. The 22-year-old victim had passed out from alcohol consumption and was lying in the living room. She awoke to find Mr. Ladue touching her breasts over her clothing and attempting to unbutton her pants. She was unable to resist due to her state of intoxication. Fortunately, other residents of the house were awakened by what was going on and Mr. Ladue fled from the home. Mr. Ladue was convicted of breaking and entering and sexual assault.

[25] At the sentencing hearing (2003 YKTC 100 (CanLII)), Judge Faulkner of the Yukon Territorial Court noted the similarity surrounding the circumstances of each sexual assault. The psychological assessment prepared for the court indicated that Mr. Ladue was incapable of refraining from the use of alcohol and was unable to control his sexual impulses. He was also diagnosed as a sexual sadist and as having an antisocial personality disorder. Faulkner Terr. Ct. J. nevertheless concluded that there was some prospect for eventual management in the community, given Mr. Ladue's lengthy period of successful sobriety in the 1990s, which coincided with a period free from criminal activity. Defence counsel conceded that the requirements of s. 753.1 of the *Criminal Code* were met, and Mr. Ladue was designated as a long-term offender. Faulkner Terr.

Ct. J. sentenced Mr. Ladue to three years' imprisonment for breaking and entering and committing sexual assault, after taking into account the 14 months he had spent in custody prior to sentencing. He also imposed a seven-year LTSO.

B. *The Current Offence*

[27] On August 12, 2009, Mr. Ladue was released from prison following a suspension of his LTSO. He was supposed to be released to Linkage House in Kamloops, British Columbia, where he anticipated receiving considerable culturally relevant support from an Aboriginal Elder. Instead, Mr. Ladue was arrested at the prison gate [due to an administrative error.] [A]s a result of that delay, he lost his placement at Linkage House. Instead, he was released to Belkin House in downtown Vancouver, despite his concerns over the propriety of the placement due to the accessibility of drugs both in the residence and in the neighbourhood. Once at Belkin House, Mr. Ladue began associating with another offender who was a known drug user. Mr. Ladue was asked to provide a urine sample on August 19. On August 24, he advised the staff that the urinalysis would come back positive for cocaine, which it did. Mr. Ladue provided a second urine sample on August 27, which also returned positive for cocaine. He was charged with breaching a condition of his LTSO, contrary to s. 753.3(1) of the *Criminal Code* and pleaded guilty to that offence on February 10, 2010.

C. *Judicial History*

(1) Provincial Court of British Columbia, 2010 BCPC 410 (CanLII)

[28] At the sentencing hearing, the Crown requested a sentence in the range of 18 months to two years. Bagnall Prov. Ct. J. concluded that this range was inadequate in the circumstances. She emphasized the serious nature of the offence:

Once released from custody, even under close supervision, Mr. Ladue's pattern is to relapse very quickly back into drug or alcohol use. He cannot be managed, nor can he manage himself in the community at the present time. The harm that is likely for another member of the community, or members of the community, if Mr. Ladue consumes intoxicants is very serious. This can be seen from the history that I have detailed. [para. 31]

Bagnall Prov. Ct. J. therefore held that isolation was the most important sentencing objective in the circumstances and imposed a three-year term of imprisonment [...]. Bagnall Prov. Ct. J. referred to the tragic aspects of Mr. Ladue's history, but apparently concluded that they should not impact on his sentence.

(2) Court of Appeal for British Columbia, 2011 BCCA 101, 302 B.C.A.C.
93

[29] Mr. Ladue appealed his sentence on the grounds that the sentencing judge failed to adequately consider his circumstances as an Aboriginal offender, and that the ultimate sentence was unfit. The majority of the Court of Appeal allowed his appeal and reduced the sentence to one year's imprisonment. Chiasson J.A., dissenting, would have allowed the appeal and imposed a two-year sentence. [...]

V. Analysis

A. *The Principles of Sentencing*

[34] The central issue in these appeals is how to determine a fit sentence for a breach of an LTSO in the case of an Aboriginal offender. In particular, the Court must address whether, and how, the *Gladue* principles apply to these sentencing decisions. But first, it is important to review the principles that guide sentencing under Canadian law generally.

[35] In 1996, Parliament amended the *Criminal Code* to specifically codify the objectives and principles of sentencing (*An Act to amend the Criminal Code (sentencing) and other Acts in consequence thereof*, S.C. 1995, c. 22 (Bill C-41)). According to s. 718, the fundamental purpose of sentencing is to contribute to "respect for the law and the maintenance of a just, peaceful and safe society". This is accomplished by imposing "just sanctions" that reflect one or more of the traditional sentencing objectives: denunciation, general and specific deterrence, separation of offenders, rehabilitation, reparation to victims, and promoting a sense of responsibility in offenders and acknowledgment of the harm done to victims and to the community.

[36] The *Criminal Code* goes on to list a number of principles to guide sentencing judges. The fundamental principle of sentencing is that the sentence must be proportionate to both the gravity of the offence and the degree of responsibility of the offender. As this Court has previously indicated, this principle was not borne out of the 1996 amendments to the *Code* but, instead, has long been a central tenet of the sentencing process [...] It also has a constitutional dimension, in that s. 12 of the *Canadian Charter of Rights and Freedoms* forbids the imposition of a grossly disproportionate sentence that would outrage society's standards of decency. [...]

[37] The fundamental principle of sentencing (i.e., proportionality) is intimately tied to the fundamental purpose of sentencing — the maintenance of a just, peaceful and safe society through the imposition of just sanctions. Whatever weight a judge may wish to accord to the various objectives and other principles listed in the *Code*, the resulting sentence must respect the fundamental principle of proportionality. Proportionality is the *sine qua non* of a just sanction. First, the principle ensures that a sentence reflects the gravity of the offence. This is closely tied to the objective of denunciation. It promotes justice for victims and ensures public confidence in the justice system. [...] Second, the principle of proportionality ensures that a sentence does not exceed what is appropriate, given the moral blameworthiness of the offender. In this sense, the principle serves a limiting or restraining function and ensures justice for the offender. In the Canadian criminal justice system, a just sanction is one that reflects both perspectives on proportionality and does not elevate one at the expense of the other. [...]

B. *The Offence — Sentencing for Breach of a Long-Term Supervision Order*

[40] These two appeals involve persons designated as long-term offenders who are charged with breaching a condition of their LTSOs. [...] In order to weigh the various principles and objectives of sentencing and reach a conclusion regarding a fit sentence, it is important to understand the long-term offender regime. [...]

[48] Reading the *Criminal Code*, the *CCRA* and the applicable jurisprudence together, we can [...] identify two specific objectives of long-term supervision as a form of conditional release: (1) protecting the public from the risk of reoffence, and (2) rehabilitating the offender and reintegrating him or her into the community. [...]

C. *The Offender — Sentencing Aboriginal Offenders*

[56] Section 718.2(e) of the *Criminal Code* directs that “all available sanctions other than imprisonment that are reasonable in the circumstances should be considered for all offenders, with particular attention to the circumstances of aboriginal offenders”. This provision was introduced into the *Code* as part of the 1996 Bill C-41 amendments to codify the purpose and principles of sentencing. According to the then-Minister of Justice, Allan Rock, “the reason we referred specifically there to aboriginal persons is that they are sadly overrepresented in the prison populations of Canada” [...]

[57] Aboriginal persons were sadly overrepresented indeed. [...] The [imprisonment] statistics led the Royal Commission on Aboriginal Peoples (“RCAP”) to conclude, at p. 309 of its Report, *Bridging the Cultural Divide: A Report on Aboriginal People and Criminal Justice in Canada* (1996):

The Canadian criminal justice system has failed the Aboriginal peoples of Canada — First Nations, Inuit and Métis people, on-reserve and off-reserve, urban and rural — in all territorial and governmental jurisdictions. The principal reason for this crushing failure is the fundamentally different world views of Aboriginal and non-Aboriginal people with respect to such elemental issues as the substantive content of justice and the process of achieving justice.

[58] The overrepresentation of Aboriginal people in the Canadian criminal justice system was the impetus for including the specific reference to Aboriginal people in s. 718.2(e). It was not at all clear, however, what exactly the provision required or how it would affect the sentencing of Aboriginal offenders. In 1999, this Court had the opportunity to address these questions in *Gladue* [...]

[59] The Court held [...] that s. 718.2(e) of the *Code* is a remedial provision designed to ameliorate the serious problem of overrepresentation of Aboriginal people in Canadian prisons, and to encourage sentencing judges to have recourse to a restorative approach to sentencing (*Gladue*, at para. 93). It does more than affirm existing principles of sentencing; it calls upon judges to use a different method of analysis in determining a fit sentence for Aboriginal offenders. Section 718.2(e) directs sentencing judges to pay particular attention to the circumstances of Aboriginal offenders because those

circumstances are unique and different from those of non-Aboriginal offenders (*Gladue*, at para. 37). When sentencing an Aboriginal offender, a judge must consider: (a) the unique systemic or background factors which may have played a part in bringing the particular Aboriginal offender before the courts; and (b) the types of sentencing procedures and sanctions which may be appropriate in the circumstances for the offender because of his or her particular Aboriginal heritage or connection (*Gladue*, at para. 66). Judges may take judicial notice of the broad systemic and background factors affecting Aboriginal people generally, but additional case-specific information will have to come from counsel and from the pre-sentence report (*Gladue*, at paras. 83-84).

[60] Courts have, at times, been hesitant to take judicial notice of the systemic and background factors affecting Aboriginal people in Canadian society [...] To be clear, courts must take judicial notice of such matters as the history of colonialism, displacement, and residential schools and how that history continues to translate into lower educational attainment, lower incomes, higher unemployment, higher rates of substance abuse and suicide, and of course higher levels of incarceration for Aboriginal peoples. These matters, on their own, do not necessarily justify a different sentence for Aboriginal offenders. Rather, they provide the necessary *context* for understanding and evaluating the case-specific information presented by counsel. Counsel have a duty to bring that individualized information before the court in every case, unless the offender expressly waives his right to have it considered. In current practice, it appears that case-specific information is often brought before the court by way of a *Gladue* report, which is a form of pre-sentence report tailored to the specific circumstances of Aboriginal offenders. [...]

[61] It would have been naive to suggest that sentencing Aboriginal persons differently, without addressing the root causes of criminality, would eliminate their overrepresentation in the criminal justice system entirely. In *Gladue*, Cory and Iacobucci JJ. were mindful of this fact, yet retained a degree of optimism [...]

[62] This cautious optimism has not been borne out. In fact, statistics indicate that the overrepresentation and alienation of Aboriginal peoples in the criminal justice system has only worsened. [...] Whereas Aboriginal persons made up 12 percent of all federal inmates in 1999 when *Gladue* was decided, they accounted for 17 percent of federal admissions in 2005 [...].

[63] Over a decade has passed since this Court issued its judgment in *Gladue*. As the statistics indicate, s. 718.2(e) of the *Criminal Code* has not had a discernible impact

on the overrepresentation of Aboriginal people in the criminal justice system. Granted, the *Gladue* principles were never expected to provide a panacea. There is some indication, however, from both the academic commentary and the jurisprudence, that the failure can be attributed to some extent to a fundamental misunderstanding and misapplication of both s. 718.2(e) and this Court's decision in *Gladue*. The following is an attempt to resolve these misunderstandings, clarify certain ambiguities, and provide additional guidance so that courts can properly implement this sentencing provision.

(1) Making Sense of Aboriginal Sentencing

[64] Section 718.2(e) of the *Criminal Code* and this Court's decision in *Gladue* were not universally well received. Three interrelated criticisms have been advanced: (1) sentencing is not an appropriate means of addressing overrepresentation; (2) the *Gladue* principles provide what is essentially a race-based discount for Aboriginal offenders; and (3) providing special treatment and lesser sentences to Aboriginal offenders is inherently unfair as it creates unjustified distinctions between offenders who are similarly situated, thus violating the principle of sentence parity. In my view, these criticisms are based on a fundamental misunderstanding of the operation of s. 718.2(e) of the *Criminal Code*.

[65] [...] As we have seen, the direction to pay particular attention to the circumstances of Aboriginal offenders was included in light of evidence of their overrepresentation in Canada's prisons and jails. This overrepresentation led the Aboriginal Justice Inquiry of Manitoba to ask in its Report: "Why, in a society where justice is supposed to be blind, are the inmates of our prisons selected so overwhelmingly from a single ethnic group? Two answers suggest themselves immediately: either Aboriginal people commit a disproportionate number of crimes, or they are the victims of a discriminatory justice system" (p. 85; see also RCAP, at p. 33). The available evidence indicates that both phenomena are contributing to the problem (RCAP). Contrary to Professors Stenning and Roberts, addressing these matters does not lie beyond the purview of the sentencing judge.

[66] First, sentencing judges can endeavour to reduce crime rates in Aboriginal communities by imposing sentences that effectively deter criminality and rehabilitate offenders. These are codified objectives of sentencing. To the extent that current

sentencing practices do not further these objectives, those practices must change so as to meet the needs of Aboriginal offenders and their communities. [...]

[67] Second, judges can ensure that systemic factors do not lead inadvertently to discrimination in sentencing. Professor Quigley aptly describes how this occurs:

Socioeconomic factors such as employment status, level of education, family situation, etc., appear on the surface as neutral criteria. They are considered as such by the legal system. Yet they can conceal an extremely strong bias in the sentencing process. Convicted persons with steady employment and stability in their lives, or at least prospects of the same, are much less likely to be sent to jail for offences that are borderline imprisonment offences. The unemployed, transients, the poorly educated are all better candidates for imprisonment. When the social, political and economic aspects of our society place Aboriginal people disproportionately within the ranks of the latter, our society literally sentences more of them to jail. This is systemic discrimination.

(T. Quigley, “Some Issues in Sentencing of Aboriginal Offenders”, in R. Gosse, J. Y. Henderson and R. Carter, eds., *Continuing Poundmaker and Riel’s Quest: Presentations Made at a Conference on Aboriginal Peoples and Justice* (1994), 269, at pp. 275-76)

Sentencing judges, as front-line workers in the criminal justice system, are in the best position to re-evaluate these criteria to ensure that they are not contributing to ongoing systemic racial discrimination. [...]

[69] Certainly sentencing will not be the sole — or even the primary — means of addressing Aboriginal overrepresentation in penal institutions. But that does not detract from a judge’s fundamental duty to fashion a sentence that is fit and proper in the circumstances of the offence, the offender, and the victim. [...] The sentencing judge has an admittedly limited, yet important role to play. [...]

[70] The sentencing process is therefore an appropriate forum for addressing Aboriginal overrepresentation in Canada’s prisons. Despite being theoretically sound, critics still insist that, in practice, the direction to pay particular attention to the circumstances of Aboriginal offenders invites sentencing judges to impose more lenient

sentences simply because an offender is Aboriginal. In short, s. 718.2(e) is seen as a race-based discount on sentencing, devoid of any legitimate tie to traditional principles of sentencing. [...]

[71] In *Gladue*, [...] Cory and Iacobucci JJ. were very clear in stating that “s. 718.2(e) should not be taken as requiring an automatic reduction of a sentence, or a remission of a warranted period of incarceration, simply because the offender is aboriginal” (para. 88 (emphasis added)). [...]

[72] While the *purpose* of s. 718.2(e) may not be to provide “a remission of a warranted period of incarceration”, critics argue that the *methodology* set out in *Gladue* will inevitably have this effect. As Professors Stenning and Roberts state: “. . . the practical effect of this alternate methodology is predictable: the sentencing of an Aboriginal offender is less likely to result in a term of custody and, if custody is imposed, it is likely to be shorter in some cases than it would have been had the offender been non-Aboriginal” (p. 162). These criticisms are unwarranted. The methodology set out by this Court in *Gladue* is designed to focus on those unique circumstances of an Aboriginal offender which could reasonably and justifiably impact on the sentence imposed. *Gladue* directs sentencing judges to consider: (1) the unique systemic and background factors which may have played a part in bringing the particular Aboriginal offender before the courts; and (2) the types of sentencing procedures and sanctions which may be appropriate in the circumstances for the offender because of his or her particular Aboriginal heritage or connection. Both sets of circumstances bear on the ultimate question of what is a fit and proper sentence.

[73] First, systemic and background factors may bear on the culpability of the offender, to the extent that they shed light on his or her level of moral blameworthiness. [...] Canadian criminal law is based on the premise that criminal liability only follows from voluntary conduct. Many Aboriginal offenders find themselves in situations of social and economic deprivation with a lack of opportunities and limited options for positive development. While this rarely — if ever — attains a level where one could properly say that their actions were not *voluntary* and therefore not deserving of criminal sanction, the reality is that their constrained circumstances may diminish their moral culpability. [...] Failing to take these circumstances into account would violate the fundamental principle of sentencing — that the sentence must be proportionate to the gravity of the offence *and the degree of responsibility of the offender*. [...]

[74] The second set of circumstances — the types of sanctions which may be appropriate — bears not on the degree of culpability of the offender, but on the effectiveness of the sentence itself. [...] The *Gladue* principles direct sentencing judges to abandon the presumption that all offenders and all communities share the same values when it comes to sentencing and to recognize that, given these fundamentally different world views, different or alternative sanctions may more effectively achieve the objectives of sentencing in a particular community. [...]

[76] A third criticism, intimately related to the last, is that the Court's direction to utilize a method of analysis when sentencing Aboriginal offenders is inherently unfair as it creates unjustified distinctions between offenders who are otherwise similarly situated. This, in turn, violates the principle of sentence parity. This criticism is premised on the argument that the circumstances of Aboriginal offenders are not, in fact, unique. As Professors Stenning and Roberts put it, at p. 158:

If the kinds of factors that place many Aboriginal people at a disadvantage *vis-à-vis* the criminal justice system also affect many members of other minority or similarly marginalized non-Aboriginal offender groups, how can it be fair to give such factors more particular attention in sentencing Aboriginal offenders than in sentencing offenders from those other groups who share a similar disadvantage?

[77] This critique ignores the distinct history of Aboriginal peoples in Canada. The overwhelming message emanating from the various reports and commissions on Aboriginal peoples' involvement in the criminal justice system is that current levels of criminality are intimately tied to the legacy of colonialism (see, e.g., RCAP, at p. 309). As Professor Carter puts it, "poverty and other incidents of social marginalization may not be unique, but how people get there is. No one's history in this country compares to Aboriginal people's" (M. Carter, "Of Fairness and Faulkner" (2002), 65 *Sask. L. Rev.* 63, at p. 71). Furthermore, there is nothing in the *Gladue* decision which would indicate that background and systemic factors should not also be taken into account for other, non-Aboriginal offenders. [...]

[78] The interaction between ss. 718.2(e) and 718.2(b) — the parity principle — merits specific attention. Section 718.2(b) states that "a sentence should be similar to sentences imposed on similar offenders for similar offences committed in similar circumstances". Similarity, however, is sometimes an elusory concept. [...]

[79] In practice, similarity is a matter of degree. No two offenders will come before the courts with the same background and experiences, having committed the same crime in the exact same circumstances. Section 718.2(b) simply requires that any disparity between sanctions for different offenders be justified. To the extent that *Gladue* will lead to different sanctions for Aboriginal offenders, those sanctions will be justified based on their unique circumstances — circumstances which are rationally related to the sentencing process. Courts must ensure that a formalistic approach to parity in sentencing does not undermine the remedial purpose of s. 718.2(e). As Professor Quigley cautions, at p. 286:

[...] It is true that on the surface imposing the same penalty for the nearly identical offence is only fair. That might be closer to the truth in a society that is more equitable, more homogenous and more cohesive than ours. But in an ethnically and culturally diverse society, there is a differential impact from the same treatment. Indeed, that has been recognized in the jurisprudence on equality rights under the Charter. Thus, there is a constitutional imperative to avoiding excessive concern about sentence disparity.

(2) Evaluating Aboriginal Sentencing Post-*Gladue*

[80] An examination of the post-*Gladue* jurisprudence applying s. 718.2(e) reveals several issues with the implementation of the provision. These errors have significantly curtailed the scope and potential remedial impact of the provision, thwarting what was originally envisioned by *Gladue*.

[81] First, some cases erroneously suggest that an offender must establish a causal link between background factors and the commission of the current offence before being entitled to have those matters considered by the sentencing judge. [...]

[83] [I]t would be extremely difficult for an Aboriginal offender to ever establish a direct causal link between his circumstances and his offending. The interconnections are simply too complex. [...] Furthermore, the operation of s. 718.2(e) does not logically require such a connection. Systemic and background factors do not operate as an excuse or justification for the criminal conduct. Rather, they provide the necessary context to enable a judge to determine an appropriate sentence. This is not to say that those factors

need not be tied in some way to the particular offender and offence. Unless the unique circumstances of the particular offender bear on his or her culpability for the offence or indicate which sentencing objectives can and should be actualized, they will not influence the ultimate sentence.

[84] The second and perhaps most significant issue in the post-*Gladue* jurisprudence is the irregular and uncertain application of the *Gladue* principles to sentencing decisions for serious or violent offences. [...] The passage in *Gladue* that has received [...] unwarranted emphasis is the observation that “[g]enerally, the more violent and serious the offence the more likely it is as a practical reality that the terms of imprisonment for aboriginals and non-aboriginals will be close to each other or the same, even taking into account their different concepts of sentencing” (para. 79; see also *Wells*, at paras. 42-44). Numerous courts have erroneously interpreted this generalization as an indication that the *Gladue* principles do not apply to serious offences (see, e.g., *R. v. Carrière* (2002), 164 C.C.C. (3d) 569 (Ont. C.A.)).

[85] Whatever criticisms may be directed at the decision of this Court for any ambiguity in this respect, the judgment ultimately makes it clear that sentencing judges have a *duty* to apply s. 718.2(e) [...]

[86] In addition to being contrary to this Court’s direction in *Gladue*, a sentencing judge’s failure to apply s. 718.2(e) in the context of serious offences raises several questions. First, what offences are to be considered “serious” for this purpose? As Ms. Pelletier points out: “Statutorily speaking, there is no such thing as a ‘serious’ offence. The *Code* does not make a distinction between serious and non-serious crimes. There is also no legal test for determining what should be considered ‘serious’” (R. Pelletier, “The Nullification of Section 718.2(e): Aggravating Aboriginal Over-representation in Canadian Prisons” (2001), 39 *Osgoode Hall L.J.* 469, at p. 479). Trying to carve out an exception from *Gladue* for serious offences would inevitably lead to inconsistency in the jurisprudence due to “the relative ease with which a sentencing judge could deem any number of offences to be ‘serious’” (Pelletier, at p. 479). It would also deprive s. 718.2(e) of much of its remedial power, given its focus on reducing overreliance on incarceration. A second question arises: Who are courts sentencing if not the offender standing in front of them? If the offender is Aboriginal, then courts must consider all of the circumstances of that offender, including the unique circumstances described in *Gladue*. There is no sense comparing the sentence that a particular Aboriginal offender would receive to the sentence that some hypothetical non-Aboriginal offender would receive, because there is only one offender standing before the court. [...]

VI. Application

A. *Manasie Ipeelee*

[89] In my view, the courts below made several errors in principle warranting appellate intervention. First, the courts reached the erroneous conclusion that protection of the public is the paramount objective when sentencing for breach of an LTSO and that rehabilitation plays only a small role. [...] The courts therefore erred in concluding that rehabilitation was not a relevant sentencing objective.

[90] As a result of this error, the courts below gave only attenuated consideration to Mr. Ipeelee's circumstances as an Aboriginal offender. [...] These errors justify the Court's intervention.

[91] It is therefore necessary to consider what sentence is warranted in the circumstances. Mr. Ipeelee breached the alcohol abstention condition of his LTSO. His history indicates a strong correlation between alcohol use and violent offending. As a result, abstaining from alcohol is critical to managing his risk in the community. That being said, the conduct constituting the breach was becoming intoxicated, not becoming intoxicated and engaging in violence. The Court must focus on the actual incident giving rise to the breach. [...].

[92] At the time of the offence, Mr. Ipeelee was 18 months into his LTSO. He was living in Kingston, where there were few culturally relevant support systems in place. There is no evidence, other than one isolated instance of refusing urinalysis, that he consumed alcohol on any occasion prior to this breach. Mr. Ipeelee's history indicates that he has been drinking heavily since the age of 11. Relapse is to be expected as he continues to address his addiction.

[93] Taking into account the relevant sentencing principles, the fact that this is Mr. Ipeelee's first breach of his LTSO and that he pleaded guilty to the offence, I would substitute a sentence of one year's imprisonment. [...]

B. *Frank Ralph Ladue*

[94] Bagnall Prov. Ct. J. sentenced Mr. Ladue to three years' imprisonment [...]. The majority of the Court of Appeal intervened and substituted a sentence of one year's imprisonment. Bennett J.A., writing for the majority, held that the sentencing judge made two errors warranting appellate intervention.

[95] First, the majority of the Court of Appeal held that the sentencing judge failed to give sufficient weight to Mr. Ladue's circumstances as an Aboriginal offender. [...] In my view, the Court of Appeal was right to intervene on this basis.

[96] Second, the majority of the Court of Appeal held that a sentence of three years' imprisonment was not proportionate to the gravity of the offence and the degree of responsibility of the offender. The Court of Appeal placed particular emphasis on the manner in which Mr. Ladue came to arrive at Belkin House rather than Linkage House. In my view, this emphasis was entirely warranted. Mr. Ladue [...] had arranged to be released to Linkage House where he would have access to culturally relevant programming and the resources of an Elder. Instead, as a result of errors made by correctional officials, he was released to Belkin House where he was immediately tempted by drugs. [...]

[97] [...] A sentence of one year's imprisonment adequately reflects the principles and objectives of sentencing set out in the *Criminal Code*. As a result, I would dismiss the Crown's appeal and affirm the sentence of one year's imprisonment imposed by the majority of the Court of Appeal. [...]

The following are the reasons delivered by

ROTHSTEIN J. (dissenting in part) —

[126] I agree with LeBel J. that s. 718.2(e) requires a sentencing judge to consider background and systemic factors in crafting a sentence, and all available sanctions other than imprisonment that are reasonable in the circumstances for all offenders, with particular attention to Aboriginal offenders. [...]

[129] The particular circumstances of long-term offenders leads me to disagree with my colleague when it comes to sentencing Aboriginal long-term offenders for

breaches of conditions of their LTSOs. At para. 79 of *Gladue*, Cory and Iacobucci JJ. observed:

Generally, the more violent and serious the offence the more likely it is as a practical reality that the terms of imprisonment for aboriginals and non-aboriginals will be close to each other or the same, even taking into account their different concepts of sentencing.

I agree with LeBel J. that these comments are not to be read by sentencing judges as a justification not to apply s. 718.2(e) or to ignore the unique situation of Aboriginal offenders (paras. 84-85). But, in the context of s. 718.2(e), sentencing judges are obliged to exercise their discretion as to the appropriate sentence, having regard to all relevant considerations. Obviously, the substantial risk a long-term offender poses to the community is a relevant consideration in sentencing for the breach of an LTSO.

[130] I have set out my views above that in the case of long-term offenders, the paramount consideration is the protection of society. This applies to all long-term offenders, including Aboriginal long-term offenders who have compromised the management of their risk of reoffending by breaching a condition of their LTSOs. In these circumstances, the alternatives to imprisonment become very limited.

[131] I do not rule out alternatives. However, the alternative must be viable. The sentencing judge must be satisfied that they are consistent with protection of society. Alternatives may include returning Aboriginal offenders to their communities. However, as in all cases, this must be done with protection of the public as the paramount concern; Aboriginal communities are not a separate category entitled to less protection because the offender is Aboriginal. Where the breach of an LTSO goes to the control of the Aboriginal offender in the community, rehabilitation and reintegration into society will have faltered, if not failed. In such a case, the sentencing judge may have no alternative but to separate the Aboriginal long-term offender from society for a significant period of time. Nevertheless, during the period of incarceration, the Aboriginal status of the long-term offender should be taken into account for the purpose of providing appropriate programs that are intended to rehabilitate the offender so that upon release, the substantial risk of reoffending may be controlled. [...]